

Sexual Equality

by Sophia



WHAT'S COVERED

In this lesson, you will learn about efforts to challenge sex discrimination. Specifically, this lesson will cover:

1. [The Equal Rights Amendment and Title IX](#)
2. [The Glass Ceiling](#)
3. [Performance Reviews](#)
4. [Ethical Considerations](#)

1. The Equal Rights Amendment and Title IX



BEFORE YOU START

In previous tutorials, you learned about the importance of a workplace being free of harassment; while Equal Opportunity laws (and ethical obligation) apply to all people and all genders, women have typically experienced both harassment and discrimination more often. For example, surveys show that women experience harassment almost twice as often as men (Chatterjee, 2018), and women experience discrimination twice as often as men (Parker & Funk, 2017). This shows that while work environments should foster a safe and fair workplace for everyone, there is more concern for making it so for women. You also learned about the salary gap between men and women in all industries. Although laws exist which guarantee equal pay, slight differences in job titles or responsibilities mean that businesses can pay different people different salaries for more or less the same work; the concept of comparative worth is geared to paying people more equitably. Finally, remember that businesses do not necessarily discriminate intentionally; there are a variety of factors that affect compensation equitability, such as salary history being used to gauge an offer upon hiring an employee. This means that an initial pay difference from thirty years ago might affect a woman her entire career, with steeper differences even as she gets promoted. These are only two of the factors that affect sexual equality in the workplace.

Until the mid-twentieth century, the ideal in U.S. society was typically for women to marry, have children, and become housewives. Those who sought work for pay outside the home were routinely denied jobs because of

their sex and, when they did find employment, were paid less than men. Women who wished to remain childless or limit the number of children they had in order to work or attend college found it difficult to do so. In some states, it was illegal to sell contraceptive devices, and abortions were largely illegal and difficult for women to obtain. While things have improved, women still face these challenges.

The first women's rights movement had fought for the right to vote, a century-long battle that ended in 1920 when the 19th Amendment was ratified. A second women's rights movement emerged in the 1960s to address problems women faced in the workplace. Title VII of the Civil Rights Act of 1964 prohibited discrimination in employment on the basis of sex as well as race, color, national origin, and religion. Nevertheless, women continued to be denied jobs because of their sex and were often sexually harassed at the workplace. In 1966, feminists who were angered by the lack of progress made by women and by the government's lackluster enforcement of Title VII organized the National Organization for Women (NOW). NOW promoted workplace equality, including equal pay for women, and also called for the greater presence of women in public office, the professions, and graduate and professional degree programs.

NOW also declared its support for the **Equal Rights Amendment (ERA)**, a proposed constitutional amendment which mandated equal treatment for all regardless of sex. The ERA, written by Alice Paul and Crystal Eastman, was first proposed to Congress, unsuccessfully, in 1923. It was introduced in every Congress thereafter but did not pass both the House and the Senate until 1972. The amendment was then sent to the states for ratification with a deadline of March 22, 1979. Although many states ratified the amendment in 1972 and 1973, the ERA still lacked sufficient support as the deadline drew near. Opponents, including both women and men, argued that passage would subject women to military conscription and deny them alimony and custody of their children should they divorce. In 1978, Congress voted to extend the deadline for ratification to June 30, 1982. Even with the extension, however, the amendment failed to receive the support of the required thirty-eight states; by the time the deadline arrived, it had been ratified by only thirty-five, some of those had rescinded their ratifications, and no new state had ratified the ERA during the extension period. In 2020, Virginia became the thirty-eighth state to ratify, though well after the deadline. That led the U.S. House of Representatives to consider and pass legislation to remove the original deadlines. However, the Senate did not take up the legislation at the time. Some legal scholars state that these efforts to revive the 1972 amendment are insufficient; even Justice Ruth Bader Ginsberg, the court's most liberal justice at the time, stated that they would have to "start over."

Although the ERA failed to be ratified, **Title IX** of the United States Education Amendments of 1972 passed into law as a federal statute (not as an amendment, as the ERA was meant to be). Title IX applies to all educational institutions that receive federal aid (as most do, including private institutions) and prohibits discrimination on the basis of sex in academic programs, dormitory space, healthcare access, and school activities, including sports. Thus, if a school receives federal aid, it cannot spend more funds on programs for men than on programs for women. Meanwhile, many states have passed their own version of equal rights legislation, and workplaces often identify sexual equality in their code of ethics. Yet women continue to get paid less and get promoted less than men. While legislation and company policy can make outright sexism illegal or punishable, it is more difficult to assure true equality.



TERMS TO KNOW

Equal Rights Amendment (ERA)

A proposed constitutional amendment which mandated equal treatment for all regardless of sex. It has not been ratified as of 2023.

Title IX

Part of the United States Education Amendments of 1972 which applies to all educational institutions that receive federal funding, assuring sexual equality in academic programs, residential space, healthcare access, and school activities, including sports.

2. The Glass Ceiling



Even in companies where women receive fair pay, the higher they progress in the organization, the more they find their progress halted by discrimination. At the beginning of 2021, for example, only 41 of the world's largest 500 companies were run by women. While a vast improvement over the number twenty years earlier—where only two of the companies were run by women—these 41 chief executives still only represent 8% of those large companies. This invisible barrier preventing women from attaining high levels in a company is frequently called **the glass ceiling**.

Why do women have a more difficult time reaching the top of a company? One idea is that there is still a stereotype in the United States that women aren't aggressive enough to handle the boardroom or that they tend to seek jobs and work with other women. Other issues stem from the gender biases based on gender roles and motherhood. Men, as well as women, may value female colleagues as supporters and advisors but do not perceive them as leaders because they have not been socialized to do so.

Another idea is that women lack mentors, executives who take an interest and get them into the right meetings and introduce them to the right people to succeed. They are not included in the golf outings, after-work meals, or other informal activities where the relationships and networking occur that one needs to win the support they need to achieve the highest level of success. Slangily, this is called **the old boys club**, or old boys' network.

While some advise women to seek out the mentors and form the networks men enjoy at work, this puts the onus back on women to create an equitable workplace. Moreover, these very actions can harm a woman's career since ambition is perceived as "unfeminine."



TERMS TO KNOW

The Glass Ceiling

The invisible barrier that prevents women from attaining the highest levels of an organization.

Old Boys Club

The informal network of men that makes it easier for men to achieve high positions and more difficult for women to do so.

3. Performance Reviews

Another reason women may fail to make progress to the higher levels of an organization is their performance reviews, which both expose and codify the subtle discrimination women face.

The company Textio—which creates software to analyze language for racial or gender bias—conducted a survey of workers and also analyzed their performance reviews. They discovered that women and people of color (as well as older workers across race and gender) more often receive feedback that is not actionable or constructive, generally vague, and often to do with personality instead of performance. For example, women far more often receive feedback that they are “abrasive” or “too opinionated.” While women might also receive positive feedback like “she’s nice,” the habit was to evaluate their personality instead of their performance. The study also reveals that personality traits considered good in men are undesirable in women, such as the label “overachiever” being used instead of simply stating the person exceeded expectations (Snyder & Lee, 2022). This study shows that structures in a business for evaluating performance and recommending promotions may be “equal” but are not “equitable,” as they allow socialized bias to skew the review, and in so doing, affect a woman's career.

4. Ethical Considerations

Businesses must be focused on positive actions that promote diversity, equity, and inclusion, and not just focus on the absence of harm or conflict. Leaders have a central role to play in creating more equitable workplaces, where individuals are judged on their merits and not on their gender or any other characteristic that does not impact their job performance. Focusing on positive actions, leaders can help to support sexual equality at work, advocate for the Equal Rights Amendment and Title IX, and break down the barriers to advancement for underrepresented groups. Effective business ethics requires leaders to take a stand and not just stand silent until a conflict occurs, or harm is done.

Actively supporting sexual equality is one of the most important steps leaders can take to create more equitable workplaces. This means providing equal opportunities for all employees, regardless of their gender or sexual orientation. Women should be paid the same as men for the same job, period. There is no room for

debate, negotiation, or justification for differences in pay based on gender or sexual orientation. Leaders should ensure that all job postings, interviews, and performance evaluations are based solely on the candidate's qualifications and job performance, and not on any other characteristics that have no bearing on their ability to do the job.

Next, let's consider promotion and advancement. Leaders can also work to break down the glass ceiling that prevents women or other marginalized groups from advancing in their careers. Leaders can do this by actively seeking out and promoting underrepresented individuals, providing them with mentorship and development opportunities, and creating an inclusive culture where all employees feel valued and supported.

Another obstacle to equity in the workplace is the informal old boys' network. Leaders can work to break down these networks by intentionally seeking out and promoting individuals who do not fit the typical mold of a leader, providing opportunities for professional development and mentorship to underrepresented individuals, and actively promoting diversity and inclusion in all aspects of the organization.

Also note performance reviews can play a role in promoting equity in the workplace. Leaders can ensure that performance evaluations are based on objective criteria and are free from bias or discrimination. They can also provide training to managers and supervisors on how to conduct fair and unbiased performance evaluations.

Finally, leaders must consider the ethical implications of their actions and decisions. They must be aware of their own biases and work to mitigate them, actively seek out diverse perspectives and feedback, and be willing to take corrective action when necessary. They must also create a culture of accountability, where all employees are held to the same standards of professionalism and are expected to treat one another with respect and dignity.



SUMMARY

In this lesson, you learned about supporting sexual equality at work and how leaders have a critical role to play in creating more equitable workplaces. Historically, sexual equality at work was promoted through **the Equal Rights Amendment (ERA) and Title IX**. While the ERA never passed, many states have passed similar legislation guaranteeing sexual equality. Two areas where women still face challenges are **the glass ceiling**, the invisible barrier preventing them from obtaining executive positions; and **performance reviews**, which can include unconscious bias. Ethical leaders should be aware of these challenges and implement strategies to assure equality, such as making sure women have equal opportunity to receive mentorship and leverage informal networks, and creating performance review systems that are objective and neutral.

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